

****03.04.2025****

****Sanction for Violation of GDPR****

The National Authority for the Supervision of Personal Data Processing completed, in March 2025, an investigation into the operator Banca Transilvania S.A. and found a violation of the provisions of Article 5 paragraph (1) letter a) in relation to Article 6 paragraph (1) of Regulation (EU) 2016/679. For the committed act, the operator was fined in the amount of 24,883 lei, equivalent to 5,000 euros. The investigation was initiated following a complaint from an individual, the data subject, who reported that their personal data had been processed without their consent, within the framework of an insurance policy against natural disasters by an insurance company, mandated by the operator Banca Transilvania S.A.

During the investigation, it was found that the complainant, although their mortgage loan contract with the operator Banca Transilvania S.A. had been terminated by payment, was erroneously issued a new insurance policy against natural disasters, accessory to the terminated mortgage loan contract, without the data subject having given their consent in this regard and without permission for the use of their personal data by the insurance company.

It was also found that, erroneously, the operator requested the same insurance company to issue a significant number of insurance policies, thus using the personal data contained in these policies, including the complainant's data. In this context, personal data belonging to the complainant, such as: name, surname, personal identification number, phone number, email address, address, information regarding the insured location, were processed without legal basis, in violation of the processing principle provided by the GDPR "lawfulness, fairness, and transparency."

For this act, the operator was sanctioned with a fine for violating the provisions of Article 5 paragraph (1) letter a) in relation to Article 6 paragraph (1) of Regulation (EU) 2016/679. Additionally, based on the provisions of Article 58 paragraph (2) letter b) of Regulation (EU) 2016/679, a corrective measure was imposed on the operator to ensure compliance with the GDPR regarding the operations of collecting and further processing personal data, so as to avoid their use in violation of the principles and conditions of legality. In this regard, the implementation of appropriate technical and organizational measures will also be considered, by establishing written procedures and regular training of individuals processing data under the authority of the operator.

****Legal and Communication Department****

****N.A.S.P.D.C.P****